

Message History (2)

On 5/7/2026 1:00:34 AM, San Mateo Public Records Center wrote:



Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 5/7/2026 and given the reference number **W012686-050726** for tracking purposes.

Record(s) Requested: **Pursuant to the California Public Records Act (Gov. Code § 7920 et seq.), I request the following records related to Section 5.3 of the Master Services Agreement between the City of San Mateo and Flock Group Inc., executed August 25, 2023.**

This request is a re-filing of W012297-030826, which was closed without a statutory basis into W012462-040226 on 5/6/2026. W012462-040226 has been withdrawn. This request seeks a direct response.

This request was originally filed on March 8, 2026. I ask that the Department treat this re-filing with corresponding urgency given the time already elapsed. This re-filing includes scope clarifications — particularly identifying non-responsive record types — intended to reduce the volume of records requiring review.

Purpose

This request seeks to determine two things: whether SMPD has received any notification that Flock Safety has exercised its authority under § 5.3; and whether SMPD has any policy, procedure, or mechanism by which it would become aware of a § 5.3 disclosure if one occurred.

Background

Section 5.3 authorizes Flock Safety to "access, use, preserve and/or disclose the Footage to law enforcement authorities, government officials, and/or third parties" based on Flock's "good faith belief" that such action is "reasonably necessary." This provision survives contract termination under Section 7.3.

Records requested

1. All notifications from Flock Safety to SMPD regarding any access, use, preservation, or disclosure of SMPD Footage (as defined in MSA § 1.10), including any ALPR information (as defined in Civil Code § 1798.90.5), to law enforcement authorities, government officials, or third parties pursuant to Section 5.3.
2. All SMPD records documenting, reviewing, or tracking any disclosures by Flock Safety under Section 5.3.
3. Any communications between SMPD and Flock Safety regarding the scope, applicability, or exercise of Section 5.3 — including any review conducted following Attorney General Bulletin 2023-DLE-06 (October 27, 2023), which directed law enforcement agencies to review vendor agreements for provisions allowing access beyond California public agencies.
4. Any analysis, memorandum, legal review, or correspondence assessing whether Section 5.3 is consistent with Civil Code § 1798.90.55(b), which prohibits sharing ALPR information except to California public agencies.
5. Any request from SMPD to Flock Safety for a log, report, or accounting of disclosures made under Section 5.3, and any response received. Any disclosure log, report, or accounting provided by Flock Safety to SMPD, whether pursuant to a request or proactively.

Note on search scope

This request concerns disclosures made by Flock Safety under its own authority pursuant to § 5.3 — not sharing decisions made by SMPD. The following are not responsive:

- Camera-sharing notifications ("Camera Access Request from [Agency]," "[Agency] shared Flock cameras with you," or equivalent)
- Records of SMPD's deliberate sharing decisions with partner agencies through the Flock network
- SMPD's transparency portal data or sharing-list configurations

Responsive records would include: any communication in which Flock notified SMPD of a § 5.3 disclosure; any internal SMPD record tracking or acknowledging such a disclosure; any communication between SMPD and Flock discussing the scope or exercise of § 5.3; any legal analysis of § 5.3; and any SMPD request to Flock for an accounting of § 5.3 disclosures.

Items 2 and 4 seek internal SMPD records — memoranda, tracking records, and legal analyses. They are not email records and cannot be satisfied through review of any @flocksafety.com email corpus.

Item 5 includes communications sent by SMPD to Flock Safety. These are outbound records and would not appear in any corpus limited to inbound @flocksafety.com emails.

Anticipated exemption issues

Civil Code § 1798.90.55(b). The records requested describe what Flock did with SMPD's data — they are vendor contract administration records, not ALPR information as defined in § 1798.90.5(c). §

1798.90.55(b) restricts SMPD from sharing ALPR information outward; it does not exempt records documenting a vendor's own disclosures.

Gov. Code § 7923.600. These are not investigation records. They document whether and how a contractor exercised its contractual authority. They are not files compiled in connection with any particular investigation.

Records held by Flock Safety. MSA § 4.1 establishes SMPD's ownership of data processed by Flock on SMPD's behalf. Under Gov. Code § 7920.530 and City of San Jose v. Superior Court (2017) 2 Cal.5th 608, records held by Flock as SMPD's contractor are SMPD records regardless of physical location. SMPD has already produced records of this type from Flock under W012570-041926.

Segregability and denial requirements

If any portion of any item is withheld, please produce all reasonably segregable non-exempt portions (Gov. Code § 7922.525(b)) and identify each withheld record with a specific exemption citation per § 7922.540. For item 4, if the responsive record is withheld as attorney-client privileged, please confirm that such an analysis exists and identify it by date and general subject matter.

If no records exist for any individual item, please respond to that item separately.

The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the [San Mateo Records Center](#).

On 5/7/2026 1:00:30 AM, Brian C wrote:

Request Created on Public Portal